

The examination is being carried out on the **following application documents**

**Description, Pages**

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**Claims, Numbers**

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1. Amendments

The amendments as filed with letter on 14.3.2022 are admissible under Art. 123 (2) EPC: in claim 2 only a typographical error has been corrected.

2. Claims

It has come to the attention of Examining Division that the objection concerning the term "or prodrug thereof" has not fully been met by the Applicant: Although this term has been deleted from the claims, there are several passages in the adapted specification which still refer to prodrug, e.g. on p. 56 to 59 and passage [0341].

The term "or a thereof" throughout the claims is not admissible according to the EPC Examination Guidelines, Section IV, C III, 4.7, since it is a functional expression attempting to define the subject matter in terms of a desired property. According to this Guidelines, claims, which attempt to define the invention or features thereof by a result to be achieved should be, as a general rule, objected to. There is no indication of the technical feature necessary to define the subject matter in order to be able to solve the problem. Functional terms would only be allowable if the result is one which can be directly and positively verified by tests or procedures adequately specified in the description and involving nothing more than trial and error. This requirement is not fulfilled, since already any in vivo test which is necessary in order to determine if a compound could be considered as a prodrug, would mean an undue experimentation, i.e. an undue burden for the public. Thus, this term is not admissible under Art. 83 and 84 EPC.

In this context the Applicant's attention is drawn to the Decision of the Boards of Appeal T 0279/07 where the Board came to the conclusion that claim 1 did not fulfil the requirement of Art. 84 EPC due to the term "or prodrug thereof" (see especially Reasons for the Decision. 2.1.):

The board had no doubt that the skilled person is perfectly able in most cases to decide whether or not a steroid derivative will be converted to the 5-diol in vivo in particular when the chemical entity differs from the 5-diol skeleton merely by the presence of usual hydrolysable hydroxyl protecting groups, such as ....

However the Board was also convinced that in order to establish whether a structurally more remote derivative constitutes a prodrug of the 5-diol; in order to clearly establish the scope of the claims, the skilled person would sometimes have no other choice than to synthesise a labeled sample to be tested and to follow its biochemical transformations in vivo to determine whether or not the chemical structure under consideration is a biological precursor, which is exactly what the Applicant has stated in the present case for the identification of the "in vivo hydrolysable esters" (see p. 8, last paragraph).

According to the Case Law of the Boards of Appeal (e.g. T 0068/85, OJ 6/1987, 228), clarity demands not only that a skilled person be able to understand the teaching of the claim but also that he be able to implement it. In other words, the feature must provide instructions which are sufficiently clear for the expert to reduce them to practice **without unreasonable burden, if necessary with routine experiments**.

The clarity requirement was therefore not met in this case since, as shown above, the skilled person would have to find out in some cases merely by trial and error whether a steroid derivative meets the functional requirement set out in the claim, i.e. by **making his own investigations, similar to a research programme**. Under these circumstances, the Board concluded that claim 1 of the main request did not fulfill the requirement of Article 84 EPC.

3. Since the present case is analogous to the one as cited above, the Applicant can expect the Examining Division to take the same decision. Thus the Applicant is informed that rejection of the present application is to be expected according to Art. 97 (2) EPC due to infringement of Art. 84 EPC.